

An Act

ENROLLED SENATE
BILL NO. 2026

By: Hines of the Senate

and

Miller and Menz of the
House

An Act relating to counties; amending 19 O.S. 2021, Section 270, which relates to confidentiality of Department of Defense Form 214; authorizing grandchildren of veterans to view certain military discharge papers; updating statutory reference; and providing an effective date.

SUBJECT: Military discharge papers

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 270, is amended to read as follows:

Section 270. A. The county clerk shall keep any ~~Department of Defense Form 214 (DD Form 214)~~ military discharge papers filed with the clerk, including any ~~DD Form 214 military discharge papers~~ that ~~was~~ were filed before ~~the effective date of this act~~ July 1, 2002, separate from records available for public inspection and shall not make ~~the DD Form 214 military discharge papers~~ available to any person except as provided in this section. A record of the names of veterans who have filed ~~DD Forms 214~~ military discharge papers with the clerk shall be made available for public inspection.

B. The county clerk may authorize the viewing or copying of a veteran's ~~DD Form 214 military discharge papers~~ only by the veteran, the veteran's spouse ~~or~~, child, or grandchild, a guardian for or a person having power of attorney for the veteran, spouse, ~~or~~ child,

or grandchild upon presentation of a court order showing the appointment, the executor or administrator of the estate of the veteran or spouse upon presentation of a court order showing the appointment, a representative of the United States Department of Veterans Affairs, a funeral director upon presentation of a contract signed by the person responsible for the funeral costs for the veteran, or a person authorized by the court to view or copy ~~the DD Form 214~~ military discharge papers upon presentation of the court order. The clerk shall record the names and addresses of all persons viewing or copying ~~a DD Form 214~~ military discharge papers.

C. A county clerk shall not be liable or responsible for any harm or damages that may occur as a result of any person obtaining, copying or viewing ~~a DD Form 214~~ military discharge papers.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 29th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____